

Court No. - 2

Case :- WRIT - C No. - 3524 of 2025

Petitioner :- Rajendra Nath Pal

Respondent :- State Of U.P. Thru. Addl. Chief Secy. Energy Govt. U.P.
Lko. And Others

Counsel for Petitioner :- Rohit Kumar, Shiv Kumar

Counsel for Respondent :- C.S.C., Manish Jauhari

Hon'ble Rajan Roy, J.

Hon'ble Om Prakash Shukla, J.

1. Heard.
2. The petitioner, as per the counsel for the opposite party no.4, was found indulging in electricity theft as he was using electricity directly from the transformer, therefore, the recovery certificate for recovery of more than rupees two and half lakhs has been issued, which is under challenged.
3. The aforesaid incident occurred in 2021; the recovery certificate is also of September, 2021; and the assessment order or any order passed under Section 126 of the Electricity Act, 2003, has not been challenged though it is said to have been passed in the year 2020. we see no reason to interfere in the matter.
4. The petitioner may pursue other remedies such as before the Executive Engineer under Paragraph-6.14 of Electricity Supply Code, 2005 for fixing installments for payment of dues, if he so chooses or seek such other remedies as may be permissible.
5. The writ petition is **disposed of**.

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(Om Prakash Shukla, J.) (Rajan Roy, J.)

Order Date :- 15.4.2025

Ajit